

25VECV06370 25VECV06370

County: los-angeles

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Case Number: 25VECV06370 Hearing Date: June 25, 2026 Dept: W

Hearing Date:

Thursday, June 25, 2026

Case Name:

Great American

Insurance Company v. Ridge Productions, Inc., et al.

Case No.:

25VECV06370

MOTIONS

Motion to Preclude Evidence at Trial

Moving Party:

Defendant Ridge Productions, Inc.

Responding Party:

Plaintiff Great American Insurance
Company

Notice:

Proof of Service on February 19, 2026.

Documents:

Demand for Bill of Particulars – 1/26/26

Defendant's Motion to Preclude Evidence
at Trial – 2/29/26

Plaintiff's Opposition – 4/3/26

Moving Defendant's Reply – 4/6/26

Minute Order – 4/23/26

Defendant's Supplemental Reply – 6/4/26

Plaintiff's Supplemental Opposition

Ruling:

The Court DENIES

Defendant's Motion to Preclude Evidence at Trial Re: Plaintiff's causes of
action for open book account and account stated.

Relevant

Background:

This is an open
book accounts case. Plaintiff is Great American Insurance Company. Defendant is
Ridge Productions, Inc. Plaintiff alleges that Defendant is \$55,547.84 in debt
to them. Plaintiff provides no other details!

On November 6,
2025, Plaintiff brought suit against Defendant alleging three causes of action:
1) open book account, 2) account stated, and 3) reasonable value.

On February 19,
2026, Defendant moved to preclude Plaintiff from introducing evidence of these
accounts at trial.

On April 23, 2026,
this Court continued this motion, as Plaintiff failed to attach a detailed copy
of the request bill of particulars.

Now, the Court
once again hears this motion.

Analysis:

Defendant moves to
preclude Plaintiff from introducing evidence of the account that forms the
basis of this action. (Mot. to Preclude, p. 3:21-22.)

Defendant brings
this motion under CCP § 454 which states that, "[i]t is not necessary for a
party to set forth in a pleading the items of an account therein alleged, but
he must deliver to the adverse party, within ten days after a demand thereof in
writing, a copy of the account, or be precluded from giving evidence thereof.
The court or
judge thereof may order a further account when the one delivered is too
general, or is defective in any particular." (CCP § 454.)

Here, Defendant
served Plaintiff with a Demand for Bill of Particulars on January 26, 2026.
(See generally, Demand for Particulars.) Per CCP § 454, Plaintiff had until
February 5, 2026, to produce a bill of particulars detailing the account that
this lawsuit is based on. (Brenner Decl. ¶ 3.) Plaintiff did not submit a
response by February 5, 2026. (Id. ¶ 5.) Instead, on February 9, 2025,
Plaintiff's counsel produced a written summary of what the account kinda-sorta entailed.
(Mot. to Preclude, Ex. 2.) This document contained no specifics numbers related
to the account at issue in this case. (Ibid.)

Under California
case law, this production is insufficient. The purpose of this code section is,
"to give the adverse party reasonable notice of the items constituting the
claim which he is required to meet, so that he may prepare for trial." (Gilmore
v. Hill (1957) 152 Cal.App.2d 881, 882-883 [quoting Ames v. Bell
(1907) 5 Cal.App. 1, 4].) For an example of how to analyze this motion, the
Court looks to the case of *Banchero v. Coffis*. There, a plaintiff

submitted a statement similar the one in the case at hand which merely summarized four types of alleged services that were given. (Banchero v. Coffis (1950) 96 Cal.App.2d 717, 718.) Defendant brought a motion to preclude evidence under CCP § 454, but the trial court denied the motion. (Ibid.) On appeal, this ruling was overturned. The court of appeals stated that the denial of the motion to preclude was improper, because the bill of accounts Plaintiff produced was insufficient. The court explained that, "[a] proper bill would have at least shown how much was claimed for each one of the four services alleged." (Id. at 722.) The court went on to explain that, "[w]ithout an exposition of plaintiff's position by a bill of particulars the estate in the case at bar could not adequately prepare its defense on this important phase of the case. Hence, in short, it was denied a fair trial." (Id. at 724.) This case shows that California courts take CCP § 454 at its word. Thus, courts should preclude evidence of an account when a plaintiff fails to submit a timely copy of the account.

In their original Opposition, Plaintiff insisted that preclusion is not the only remedy. (Opp. p. 1-2.) Instead, Plaintiff points to the language of CCP § 454, which states that, "[t]he court or judge thereof may order a further account when the one delivered is too general, or is defective in any particular." (CCP § 454.)

While Plaintiff cited no case law in their Opposition, the Court agreed that a plain reading of the statute allowed it leeway to order a further account, when a previous submission is too general. In this case, Plaintiff's submission was untimely and too general. (Mot. to Preclude, Ex. 2.) Thus, this Court ordered Plaintiff to produce a further account. Specifically, the Court ordered Plaintiff to produce a detailed copy of the account at issue no later than May 26, 2026. (Minute Order, 4/23/26.) Plaintiff complied with this order.

On April 23, 2026, just minutes after the Court's previous hearing on this motion, Plaintiff served on Defendant another copy of their bill of particulars. (Supp. Reply, Brenner Decl. ¶ 4; see also, Supp. Reply, Ex. B, Ex. 1.) The first three pages of this new submission are identical to the original bill of particulars this Court found inadequate. (See Supp. Reply, Ex. A; see also, Supp. Reply, Ex. B.) The second two pages, a.k.a. Exhibit 1, are labeled "Statement of Account". (Supp. Reply, Ex. B.) Here, Plaintiff provides a short list of accounts and numbers, which appear to be premium totals and dates of payment receipts. (Ibid.)

In their

Supplemental Opposition, Defendant argues that Plaintiff's newest production is insufficient, because it is not detailed enough. Specifically, Defendant asserts that, "Plaintiff generally describes insurance policies, generally describes premium charges, generally describes audits, and generally describes how premiums are determined. None of which constitutes an account. The document contains no ledger. It contains no statement of debits and credits. It contains no payroll records. It contains no audit worksheets. It contains no classification calculations. It contains no transaction history. It contains no records from which the claimed balance may be independently determined." (Supplemental Reply, p. 5:8-15.) Defendant asserts that these lack of details are fatal.

In support of the

assertion that these details matter, Defendant cites to CCP § 337a, which states that, "[t]he term 'book account' means a detailed statement which constitutes the principal record of one or more transactions between a debtor and a creditor arising out of a contract or some fiduciary relation, and shows the debits and credits in connection therewith, and against whom and in favor of whom entries are made, is entered in the regular course of business . . . and is kept in a reasonably permanent form and manner. . . ." (CCP § 337a(a).)

The Court finds

that Plaintiff's supplemental bill of particulars is sufficient to satisfy CCP § 454 and CCP § 337a(a). Plaintiff has provided a document with the alleged outstanding premiums for multiple workers compensation policies, as well as the dates and amounts of payment received by Plaintiff. (Supp. Reply, Ex. B, Ex. 1.) That is precisely what CCP § 337a(a) asks for.

Moreover, as

explained above, the purpose of a bill of particulars is to furnish a defendant with the details of the items charged and to amplify the complaint so that the defendant may intelligently prepare a defense. (Meredith v. Marks (1963) 212 Cal.App.2d 265, 269.) While these numbers do not amount to a total and exhaustive copy record of all the payroll records, debits and credits, and transaction history between the parties, they do clearly indicate the amounts Plaintiff has alleged, the accounts these claims are connected to, and the payments made by Defendant towards these accounts. Thus, Plaintiff has sufficient information to understand the allegations made against them and may

intelligently prepare a defense to these claims.

For these reasons,
the Court is satisfied with Plaintiff's production, and DENIES Defendant's
motion to preclude evidence at trial.

Conclusion:

The Court DENIES
Defendant's Motion to Preclude Evidence at Trial Re: Plaintiff's causes of
action for open book account and account stated.